

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

HEIDI PASCAL,

Plaintiff,

v.

FORD MOTOR COMPANY, et al.,

Defendants.

Case No.: CIVSB2503388

**[TENTATIVE] ORDER DENYING
MOTION FOR SUMMARY
JUDGMENT OR
ALTERNATIVELY SUMMARY
ADJUDICATION FILED BY
DEFENDANT FORD MOTOR
COMPANY**

I. INTRODUCTION

On January 31, 2025, Plaintiff Heidi Pascal filed this lemon law action against Defendants Ford Motor Company and Ken Grody Ford – Redlands, alleging causes of action for 1) Violation of Subdivision (d) of Civil Code section 1793.2, 2) Violation of Subdivision (b) of Civil Code section 1793.2, 3) Violation of Subdivision (a)(3) of Civil Code section 1793.2, 4) Breach of the Implied Warranty of Merchantability, 5) Negligent Repair, and 6) Fraudulent Inducement -Concealment. The first through fourth, and sixth causes of action are alleged as to Ford while the fifth cause of action is alleged as to Ken Grody Ford only.

A. Complaint's Allegations

Plaintiff contends she purchased a 2021 Ford Expedition and entered into a warranty contract with Ford for the subject vehicle in March 2021. The vehicle allegedly developed

defects with its transmission, engine, and electrical systems, among other things, during the warranty period. The manufacturer, Ford, was unable to repair the vehicle within a reasonable number of attempts, and it also allegedly failed to provide a replacement or restitution.

As for the fraud claim, the complaint indicates that prior to Plaintiff's purchase, Ford knew vehicles equipped with the same transmission were defective and caused hesitation, delayed acceleration, among other problems, and that knowledge was acquired through pre-production testing, failure mode and analysis data, early consumer complaints, aggregate warranty data, testing conducted by Ford in response to the complaints, and repair order and parts data. The knowledge is also evidenced by various technical service bulletins, or TSBs, that Ford issued. Pascal would not have purchased the vehicle, or would have paid less, had she known about the defect. Ford also purportedly and actively concealed the existence and nature of the defect at the time of the purchase and repairs.

The fraud claim then indicates that, in light of the advanced and exclusive knowledge, Ford committed fraud by allowing the vehicle to be sold without disclosing that the transmission was defective and susceptible to sudden and premature failure. Consumers, including Pascal, also could not have reasonably been expected to learn or discover the defect until well after the purchase, and a reasonable consumer would not have expected Ford to sell the vehicle with the known defects.

B. Pending Motion for Summary Judgment

On April 24, 2026, Ford filed the instant motion for summary judgment, or in the alternative, summary adjudication. Ford concurrently filed a separate statement of undisputed material facts and the declarations of Camden C. Pisciotta and Edie Lukas. No opposition has been filed. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. EXPLANATION OF THE COURT'S RULING

Ford moves for summary judgment, or adjudication, of Plaintiff's first through fourth, and sixth causes of action. Ford identifies the following seven issues: 1) Plaintiff's first cause of action for breach of express warranty fails because there is no evidence of a non-conformity in the vehicle that Ford failed to repair after a reasonable number of repair attempts, 2) Plaintiff's second cause of action for violation of Civil Code section 1793.2, subdivision (b) fails because there is no evidence that any warranty repair took longer than 30 days during the warranty period, 3) Plaintiff's third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3) fails because she cannot establish that Ford failed to make available to authorized service and repair facilities sufficient service literature and replacement parts during the warranty period, 4) Plaintiff cannot establish the fourth cause of action for breach of the implied warranty of merchantability against Ford because she cannot establish a breach of the implied warranty or damages, 5) Plaintiff cannot establish the sixth cause of action for fraudulent inducement – concealment against Ford because she cannot establish that Ford had knowledge of a defect at the time of sale, 6) Plaintiff cannot establish the sixth cause of action because she cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale, and 7) Plaintiff cannot establish the sixth cause of action against Ford because she cannot establish an independent tort duty to except it from the economic loss rule.

A. Ford's Undisputed Material Facts (UMF)

On May 31, 2021, Plaintiff purchased a new 2021 Ford Expedition from Fritts Ford in Riverside, California. (UMF 1.) Ford's Sales & Services Agreement governing its relationship with dealerships authorized to sell Ford vehicles provides that selling dealerships are not agents of Ford. (UMF 2.) Plaintiffs did not speak to Ford when negotiating the purchase of the subject vehicle with Fritts Ford. (UMF 3.)

On September 14, 2022, at 12,464 miles, Plaintiff presented the vehicle to Ken Grody Ford– Redlands, for two asymptomatic recalls. (UMF 4.) Plaintiff confirmed in deposition that she did not have any issues with the vehicle related to the recalls. (UMF 5.)

On August 18, 2023, at 19,497 miles, Plaintiff presented the vehicle to Fairview Ford, due to an issue related to a lack of acceleration. (UMF 6.) The dealership determined the lack of acceleration issue was caused by a faulty battery which was replaced and returned the vehicle to Plaintiff five days later, on August 23, 2023. (UMF 7.) On August 25, 2023, at 19,632 miles, Plaintiff again presented the vehicle to Fairview Ford, for issues related to a lack of acceleration. (UMF 8.) The dealership performed repairs to the transmission and returned the vehicle to Plaintiff eighteen days later, on September 12, 2023. (UMF 9.) Plaintiff confirmed in deposition that this issue related to a lack of acceleration was resolved after the second presentation and did not occur again prior to the filing of the complaint. (UMF 10.) Plaintiff did not present the vehicle related to any other warranty repairs prior to the filing her complaint. (UMF 11.)

Plaintiff also presented the vehicle for routine maintenance and for other additional non-warranty repairs related to issues experienced with aftermarket headrest televisions Plaintiff had installed by the selling dealership. (UMF 12.) Additionally, on December 12, 2023, at 22,085 miles, Plaintiff presented the vehicle because her brakes were squeaking, for which maintenance was performed by the service technician. (UMF 13.) On January 10, 2025, at 34,592 miles, Plaintiff again presented the vehicle for squeaking brakes, for which maintenance was performed by the service technician. (UMF 14.)

On January 31, 2025, Plaintiff filed her Complaint asserting three causes of action for breach of express warranty under the Song-Beverly Consumer Warranty Act (“Act”), one cause

of action for fraudulent inducement-concealment against Ford, and one cause of action for negligent repair against defendant Ken Grody Ford-Redlands. (UMF 15.)

Plaintiff confirmed in her deposition that she produced all documents supporting her claims against Ford. (UMF 16.) Plaintiff produced 35-pages of documents consisting of emails confirming appointments and complaining about dealership staff, a Google review regarding a dealership, pictures of Plaintiff's Ford Pass account, photos of finance records showing payments made, the vehicle window sticker, photos of the vehicle's cupholder and glove compartment, payment confirmation emails to the DMV, the results of a "Registration Information Request," insurance documents, and a two post complaint repair orders dated July 21, 2025, and September 29, 2025. (UMF 17.)

When asked what issues Plaintiff experienced with the vehicle, she listed two issues she experienced and for which she presented the vehicle prior to filing the complaint, (1) lag on acceleration, and (2) the brakes squeaking. Plaintiff produced no documents or other records related to any additional warranty repairs. (UMF 19.) None of Plaintiff's documents show that any warranty repair took longer than 30 days to complete. (UMF 20.) None of Plaintiff's documents show any failure to provide sufficient literature or replacement parts to Ford's authorized service and repair facilities. (UMF 21.) Further, Plaintiff confirmed in her initial disclosures that she was not in possession of any documents detailing any claimed incidental damages. (UMF 22.) In discovery, Plaintiff did not identify any diminution in value or other damages from the alleged breach of implied warranty. (UMF 23.)

Plaintiff does not allege physical damage to property other than the defective vehicle or of personal injury resulting from Ford's alleged concealment of the purported transmission defect. (UMF 24.) Instead, Plaintiff seeks only economic losses for the alleged defective vehicle.

(UMF 25.) Plaintiff testified that her decision to purchase the vehicle was not affected by any advertising regarding the subject-vehicle. (UMF 26.) Plaintiff also testified the vehicle's transmission was not a consideration when she purchased the vehicle, except that the vehicle "drove fine" during the test drive. (UMF 27.) Plaintiff also confirmed she did not expect the vehicle to be perfect and that she understood something might go wrong with the car and it might need to be repaired. (UMF 28.) None of Plaintiff's documents evidence that Ford had knowledge of any defect with the vehicle's transmission and each of the documents produced by Plaintiff postdate the purchase of the vehicle. (UMF 29.)

B. The First Cause of Action: Violation of Subdivision (d) of Civil Code section 1793.2

Plaintiff's first cause of action alleges a violation of subdivision (d) of Civil Code section 1793.2. If a manufacturer is unable to service or repair the new vehicle to conform to applicable express warranties after a reasonable number of attempts, it must promptly replace the new vehicle or make restitution. (Civ. Code, § 1793.2, subd. (d)(2).) "A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element)." (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101; *see also* CACI 3201.)

Here, Ford argues there is no evidence of a lack of conformity with respect to the subject vehicle because the vehicle was fully repaired after its second attempt. "The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is

unable to repair the vehicle ‘after a reasonable number of attempts.’” “Attempts” is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208, emphasis in the original, (*Silvio*).)

More to the point, CACI 3202 provides, in relevant part that: “In determining whether [name of defendant] had a reasonable number of opportunities to fix the [consumer good/new motor vehicle], you should consider all the circumstances surrounding each repair visit. [Name of defendant] [or its authorized repair facility] must have been given at least two opportunities to fix the [consumer good/new motor vehicle] [unless only one repair attempt was possible because the [consumer good/new motor vehicle] was later destroyed or because [name of defendant] [or its authorized repair facility] refused to attempt the repair].”

Here, Ford argues it is undisputed that the only non-conformity Plaintiff experienced during the warranty period was for the lack of acceleration. (UMFs 4-11.) Further, it is undisputed that Ford repaired all nonconformities with Plaintiff’s issue related to a lack of acceleration after the second presentation. (UMF 10.) Indeed, Plaintiff confirmed in her deposition that after the second presentation for this issue she had not experienced any further issue involving a lack of acceleration prior to filing her complaint. (*Ibid.*)

Ford argues that because the Song Beverly Act allows a manufacturer at least two chances to complete a repair, when a problem is repaired on the second try, there is no obligation on the part of the manufacturer to repurchase the vehicle.

Notably, however, the *Silvio* court used the word ‘vehicle,’ not ‘defect,’ indicating the number of repair attempts pertains to the entire vehicle rather than a specific component, part, or discrete customer complaint. Thus, the other times the vehicle was taken in for repairs should be

considered. Ford claims those include two asymptomatic recalls, for which Plaintiff confirmed she did not experience any issue, routine maintenance (including squeaky breaks), and non-warranty repairs with aftermarket headrest televisions. (UMFs 4-5, 12-14.)

But the evidence submitted by Ford is not as straightforward as Ford represents. Plaintiff's deposition includes testimony that she had to take her car in for repairs 33 times. (See Pisciotta Decl.; Exh. 4 at p. 24: 14-18.) It is not immediately clear what the issue was for each of these repairs. There is some additional supporting evidence that more repairs were done than Ford represents as well. (Pisciotta Decl.; Exh. 3-4.) Moreover, Ford represents that squeaky brakes are routine maintenance, but the evidence should be strictly construed, and there is no evidence that the squeaky brakes did not present a more significant nonconformity or safety issue. The only evidence submitted by Ford is Exhibit 5, the AWS Claims; however, there is no supporting declaration interpreting the significance of that document and whether it proves there were not 33 repairs even if the manufacturer only lists six repairs. Moreover, there is no evidence regarding how information is input into the AWS Claims report, which clearly conflicts with Plaintiff's testimony and evidence of repair visits.

Therefore, Ford's own evidence presents a material fact in dispute. As such, the Court DENIES summary judgment and adjudication of the first cause of action.

C. Second Cause of Action: Violation of Subdivision (b) of Civil Code section 1793.2

Civil Code section 1793.2, subdivision (b), provides in relevant part: "Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this

state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.”

California “courts have held that to state a claim for a violation of Section 1793.2(b), a plaintiff must allege that the manufacturer failed to complete a single repair attempt within 30 days.” (*Gallegos v. Mercedes-Benz USA, LLC* (N.D. Cal. 2023) 2023 WL 3607279, at *6 (*Gallegos*)).) Another court observed that under any reasonable reading of the statute, Section 1793.2, subdivision (b), “requires only that BMW complete any single repair attempt within 30 days. (*Gallegos, supra*, 2023 WL 3607279, at *6 citing *Schick v. BMW of N. Am., LLC* (9th Cir. 2020) 801 F. App’x. 519, 521 (*Schick*) (emphasis in original)).) The *Schick* court held that the Section 1793.2, subdivision (b) claim failed because BMW never took longer than 30 days to complete any single repair attempt. (*Schick, supra*, 801 F. App’x at p. 521.)

Ford argues that Plaintiff cannot prove her second cause of action because the undisputed facts establish that Plaintiff has no evidence that any warranty repairs took longer than thirty days. (UMFs 4-9, 20.) The warranty repairs that took place for the vehicle’s battery and transmission lasted five days and eighteen days, respectively. (UMFs 7, 9.)

Ford has also not met its burden for the same reason stated above. As there are material facts in dispute regarding the number of repair attempts, there is no information regarding potential repairs that could have lasted longer than 30 days. Ford has not defeated this evidence. Moreover, it is not enough to say that Plaintiff did not produce evidence in discovery. Ford must show that Plaintiff cannot reasonably obtain the needed evidence. (*See Aguilar, supra*, 25 Cal.4th at p. 854; see also WEIL & BROWN, CALIFORNIA PRACTICE GUIDE: CIVIL PROCEDURE BEFORE TRIAL [The Rutter Group] ¶ 10:244.)

Accordingly, the Court DENIES adjudication as to the second cause of action.

D. Third Cause of Action: Violation of Subdivision (a)(3) of Civil Code section 1793.2

Civil Code section 1793.2, subdivision (a)(3) provides that every manufacturer of consumer goods shall “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.”

Ford argues that Plaintiff lacks evidence to support this claim as she failed to produce anything in discovery regarding any failure by Ford to provide sufficient service literature or replacement parts. (UMF 22.) Further, the repair history during Plaintiff’s ownership of the vehicle conclusively establishes that Ford provided sufficient parts and literature to the repair facility as Plaintiff testified that the dealership was able to, and in fact did, complete all repairs to Plaintiff’s vehicle successfully. (UMFs 6-10.)

Here, Ford again relies on its version of the repair history, which is problematic, as explained above. While Plaintiff currently lacks documentation regarding insufficient parts or literature, Ford has failed to carry its moving burden to demonstrate that Plaintiff cannot reasonably obtain this evidence through discovery from Ford or its authorized repair facilities. It is not enough that she possesses no further documents when her testimony alone raises a material fact in dispute, and such evidence is more likely to be in Ford or the repair facilities’ possession.

Therefore, the Court DENIES summary adjudication of the third cause of action.

E. Fourth Cause of Action: Breach of the Implied Warranty of Merchantability

The elements for an implied warranty breach are: 1) plaintiff leased or bought a vehicle from or manufactured by Ford; 2) at the time of purchase Ford was in the business of selling vehicles to retail buyers or manufacturing vehicles; 3) the vehicle was not of the same quality as those generally acceptable in the trade, was not fit for the ordinary purposes for which such goods are used, was not adequately contained, packaged, or labeled, or did not measure up to the

promises or facts stated on the container or label; 4) plaintiff was harmed; 5) Ford's breach was a substantial factor in causing the harm. (CACI 3210; Civ. Code, §§ 1791.1, 1792; *Gutierrez v. Carmax Auto Superstores Calif.* (2018) 19 Cal.App.5th 1234, 1246-47.)

Ford argues that it is entitled to adjudication with respect to this cause of action because the vehicle was not presented for any warranty repair during the one-year implied warranty period. (See Civ. Code, § 1791.1, subd. (c).) However, the warranty "may be breached by a latent defect undiscoverable at the time of sale." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal. App. 4th 1297, 1304.) There must, however, be evidence that the defect existed at that time. (*Id.* at p. 1308.)

Ford argues it is undisputed that Plaintiff purchased her vehicle May 31, 2021. (UMF 1.) Her first warranty-repair presentation occurred on August 18, 2023, over a year after the implied warranty period expired. (UMF 6.) In addition, Ford argues that Plaintiff also cannot establish she was damaged by the purported breach because there was no diminution of value. Ford here relies on nonbinding district court authority. Ford does cite *Isip v. Mercedes-Benz USA, LLC* (2007) 155 Cal.App.4th 19, which provides that "[t]he core test of merchantability is fitness for the ordinary purpose for which such goods are used." (*Id.* at p. 26.) Though this is an element of the claim itself, if there is no diminution of value, it would suggest the vehicle is fit for the ordinary purpose for which such goods are used.

As such, Ford argues that Plaintiff lacks any damages because there was no repair that occurred within the one-year implied warranty period and Plaintiff did not identify any diminution in value or other damage from the alleged breach of implied warranty. (UMFs 4, 6, 8, and 22-23.)

Again, however, Ford's own evidence demonstrates that there is a material fact in dispute. The evidence submitted supports a finding that one year had indeed passed before Plaintiff sought warranty repairs. However, Ford has not submitted evidence to rule out a latent defect, that Plaintiff lacks damages, or even that there is no diminution of value. Plaintiff's deposition includes testimony that her car still suffers from the acceleration and braking issues and that she does not feel her vehicle is safe. (*See* Pisciotta Decl.; Exh. 4 at p. 104-06.)

Therefore, the Court DENIES adjudication of the fourth cause of action.

F. Sixth Cause of Action: Fraudulent Inducement – Concealment

"The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (*Rattagan v. Uber Technologies* (2024) 17 Cal.5th 1, 40 (*Rattagan*).)

Here, Ford argues that Plaintiff cannot present evidence as to the required elements of her claim. First, Ford argues that Plaintiff cannot present evidence that Ford was aware of a defect at the time of sale that it was unwilling or unable to fix. Ford notes that Plaintiff confirmed at her deposition that she produced all documents to support her claims. (UMF 16.) However, Plaintiff's claim is for concealment; this does not show Plaintiff cannot reasonably obtain such discovery as that evidence is most likely to be in Ford's possession. This argument of Ford's fails.

Next, Ford argues that Plaintiff cannot establish a transactional relationship with Ford to support the claim such that there was no duty to disclose. Ford notes that previously on demurrer the Court found contractual privity was not required. Ford argues that *Ford Motor Warranty*

Cases (2025) 17 Cal.5th 1122 (Ford Motor Warranty Cases) undermines this. “Even though a buyer may receive a manufacturer’s warranty because it bought a manufacturer’s car from a dealer, “nothing in the California Uniform Commercial Code suggests that this automatically makes the manufacturer’s warranty a part of the sale contract between the buyer and the dealership.”” (*Id.* at p. 1134.) Consistent with those principles, Ford argues Plaintiff has no evidence of a transactional relationship with it. (See UMFs 1-3.)

Plaintiff’s Complaint relies on Ford’s exclusive knowledge as the basis of her claim. (Compl. ¶¶ 24-35) At the pleading stage, if the disclosure duty arose by virtue of the parties’ relationship and defendant’s exclusive knowledge or access to certain facts, the complaint must also include specific allegations including: “(1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission.” (*Rattagan, supra*, at pp. 43-44.)

Regarding the duty to disclose/transactional relationship element, in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, review dismissed and remanded by *Dhital v. Nissan North America* (2024) 559 P.3d 1083 (*Dhital*), the court found that at the pleading stage, it was sufficient that plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan cars to consumers; in light of these allegations, the *Dhital* court declined to find that plaintiffs’ claim was barred on the ground there was no relationship requiring Nissan to disclose known defects. (*Id.* at p. 844.) Though these cases deal with the pleading stages, Ford’s argument is that the lack of a transactional relationship, as a matter of

law, will not support the claim. These cases suggest otherwise. Moreover, *Ford Motor Warranty Cases* does not explicitly hold that the fraudulent concealment claim cannot be maintained as a matter of law. Therefore, if Plaintiff can obtain evidence that Ford had exclusive knowledge, she could potentially maintain her claim. But it is Ford who has moved for summary adjudication, and it is Ford's evidence that must be strictly construed.

Ford next claims that Plaintiff cannot show any of the five circumstances under which a duty to disclose could arise. A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (*i.e.*, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (*i.e.*, partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (*i.e.*, active concealment). (*Rattagan, supra*, at p. 40)

Here, Ford primarily attacks the pleadings. But ultimately, Ford's argument is that Plaintiff lacks evidence. Ford again, however, has not shown that Plaintiff cannot reasonably obtain such evidence. As such, Ford fails to meet its burden.

Finally, Ford also argues that the claim is barred as a matter of law under the Economic Loss Rule. Again, Ford's argument is predicated on Plaintiff not being reasonably able to obtain evidence, though as noted above, this evidence is again most likely to be in Ford's possession and not Plaintiff's since Plaintiff is alleging the facts were concealed from her. That Plaintiff's discovery lacked such evidence is unremarkable.

As to the argument regarding the Economic Loss Rule, it fails as a matter of law.

Ford further argues that a fraudulent concealment claim must be based on conduct independent of the contractual obligations and involve harms beyond those reasonably anticipated in the contractual relationship. Applying these principles to fraudulent concealment, the court in *Dhital, supra*, 84 Cal.App.5th 828, concluded that the economic loss rule does not bar a claim for fraudulent inducement by concealment where the alleged fraud is independent of the contract's breach. "Fraudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court [citation], and plaintiffs allege fraudulent conduct that is independent of Nissan's alleged warranty breaches." (*Id.* at p. 843.)

Therefore, the Court DENIES adjudication of the sixth cause of action.

III. CONCLUSION

The Court DENIES the motion for summary judgment as well as the motion for summary adjudication as to the first, second, third, fourth, and sixth causes of action because Ford has failed to meet its burden of proof.

A. Material Facts in Dispute

Whether Plaintiff lacks evidence of a nonconformity/whether Ford failed to repair the vehicle after a reasonable number of attempts; whether Plaintiff lacks evidence that any repairs lasted more than 30 days; whether Plaintiff cannot establish that Ford failed to make available to authorized service and repair facilities sufficient service literature and replacements parts during the warranty period; whether Plaintiff can establish a breach of implied warranty or damages; and whether Plaintiff can establish that Ford had knowledge of the defect at the time of sale. Additionally, it is disputed whether Plaintiff can establish a transactional relationship with Ford and an independent tort duty exempting her claim from the Economic Loss Rule.

B. Evidence

Pisciotta Declaration and attached Exhibits 1-5; the Edie Lukas declaration and attached Exhibit.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

Tentative -- NOT FINAL